MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: Temporary Assignment, Reassignment or Reemployment in APWU Represented Crafts of Employees Injured On the Job

The parties agree that, consistent with the parties' current collective bargaining agreement on the application of seniority, future temporary assignments, reassignments, or reemployment of fully or partially recovered employees to work in APWU represented crafts will be to residual vacancies or to uniquely created assignments consisting of duties that would otherwise be properly performed by non-career employees.

Any existing assignments in the Clerk Craft that were uniquely created to fit an employee's work restrictions may remain in place until the employee in the assignment vacates the assignment or until the assignment is modified or changed, whether resulting from changes in the employee's restrictions or changes in service needs or operating conditions within the work unit.

An employee in a light or limited duty status will be excessed in the same way that employees in a full duty status are excessed, based on the pay level of the duty assignment that they hold and their seniority. They will receive reasonable accommodation if necessary in their new duty assignment and or installation.

When excessing occurs in a craft, either within the installation or to another installation, the sole criteria for selecting the employees to be excessed is seniority. Whether an employee in the affected craft is recovering from either an on- or off-the-job injury would have no bearing on his/her being excessed.

Other limited duty employees, who are temporarily assigned to the craft undergoing excessing, will be returned to their respective crafts before excessing can occur.

Patrick M. Devine
Manager
Contract Administration (APWU)
United States Postal Service

Cliff Guffey
President
American Postal Workers Union, AFL-CIO

Date: 9/10/12

APWU 2010-2015 CBA Questions and Answers (Q & A)

Re: Temporary Assignment, Reassignment or Reemployment in APWU Represented Crafts of Employees Injured on the Job MOU

1. Q. Does this MOU restrict the current practice of accommodating/assigning employees light or limited duty in his or her own assignment?

   A. No.

2. Q. Does this MOU change those locally negotiated light duty assignments under Article 30 and the LMOUs?

   A. No.

3. Q. Does this MOU apply only to the assignment, reassignment and/or reemployment of non-APWU represented employees into APWU crafts?

   A. No. It applies to both the assignment, reassignment and/or reemployment of non-APWU represented employees into APWU crafts and the assignment, reassignment and/or reemployment of APWU represented employees in APWU crafts.

Patrick M. Devine
Manager
Contract Administration (APWU)
United States Postal Service

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